Township of NIPISSING
"Life the way it should be" 1888

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REPORT TO COUNCIL

Date: January 3, 2023

From: Kris Croskery-Hodgins, Municipal Administrator

Re: Reconsideration of Shore Road Allowance Closure and Sale – Duggan/Dickinson

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BACKGROUND/OVERVIEW

Council passed Resolution R2022-224 on December 20, 2022, allowing for the Reconsideration of Resolution R2022-153 passed August 16, 2022, approving "In Principle" the Shore Road Closure and Sale application submitted by Paul Goodridge on behalf of Duggan/Dickinson.

A review of the original letter from Mr. Goodridge, dated June 30, 2022, accompanying the application and presented at the July 12, 2022 Council meeting, provides the following facts:

1. The Applicants proposed a "Land Swap" of the lake access piece in favour of the Unopened Shore Road Allowance around the property. This was to be an "exchange" of land with no monetary amount submitted by the applicants or the Township.

2. The Applicants would require a right-of-way over the lands proposed to be traded to the Township to ensure access from a public road system to their property.

3. The Applicants requested that they would be "guaranteed that a Building Permit for the Retained lands could be issued even though they would no longer technically front on a maintained public road.

4. The Applicants request that the land proposed for trade, providing an access point to Lake Nipissing, not be used for the public launching of motorized boats.

These items were considered by Council when deciding on the original request. With an alternative access point established and this land swap not a priority for the file, Council may reconsider this matter.

FINANCIAL IMPACT

The land proposed for "Land Swap" does not meet with the usual guidelines of a Lakeshore Road Closing nor declaring public land surplus for sale. This is a private sale of land to the Township and the transfer of Unopened Shore Road Allowance to the Applicant without the benefit of the $15 per frontage foot cost of all other SRA Applications and per Township policy.

Estimated costs:
Sale of Shore Road Allowance 557.74 linear feet x $15.00/linear foot = $8,366.10
*Revenue to be placed in Parkland Funds Reserve.

Purchase of Lake Access 137.8 linear feet x $15.00/linear foot = $2,067.00
*Could be paid for from the Parkland Funds Reserve or taxation.

Applicant would still be responsible for the costs of the required Environmental Study, Legal and Advertising costs and any further survey costs.

The cost provisions are not laid out in the proposal from the Applicant and would need to be confirmed in writing.

SUMMARY

Council members have received a number of comments from the public regarding the possible sale of the Shore Road Allowance on this point due to historic public use of the area.

The items presented in the original discussions with Council regarding this sale have been reviewed and the following comments provided.

1. A proposed "Land Swap" would be expected to have an equal monetary value to ensure equity for public land and funds. There appears to be a variance in the equity of this transaction to the benefit of the Applicant.

2. Written confirmation of responsibility of costs for surveying and legal fees needs to be established.

3. Without a Site Plan and Building Envelope established meeting Zoning By-law and Building Code requirements, a "guarantee" for a building permit is not possible nor recommended.

4. This area was not maintained by the Township previously for any pursuits, however limiting the use of Township land (if it is purchased by the Township) would be outside of regular policy, require heightened enforcement requirements and administrative burden.

RECOMMENDATION:

1) Not to entertain a "Land Swap" as it is not in the financial fairness of usual practice.

2) Council should have regard to the public input they have received regarding loss of ownership of this portion of the lakefront and impact on residents.

3) Council rescind Resolution R2022-153 approving the application "in principle", refunding the applicants the Application Fee of $250 and advising that the Application may be resubmitted when amended to remove the "transfer" recommendation for Council consideration.

Respectfully,

Kris Croskery-Hodgins, Municipal Administrator

Goodridge Goulet Planning & Surveying Ltd.
ONTARIO LAND SURVEYOR
LAND USE PLANNERS & DEVELOPMENT CONSULTANTS

June 30, 2022

Ms. Chris Croskery-Hodgins,
Municipal Administrator, Clerk, Treasurer
Corporation of the Township of Nipissing
45 Beatty Street
Nipissing, ON P0H 1W0

Dear Chris,

Reference: **Proposed Shore Road Allowance Closure & Disposition & Land Swap**
Owners: Andrea Dickinson & Tracy Duggan
Part of Broken Lot 11, Concession 19, Geographic Township of Nipissing
Municipality of the Township of Nipissing, District of Parry Sound
PIN 52221-0725 (LT)
Our File: **1278-21**

Thank you for meeting with me and John-Paul from your office earlier this week for a preliminary discussion about a proposed land swap on subject property. As you are aware, my clients recently purchased the piece of land described as Part 1, Plan 42R-21838 in order to have a guaranteed docking site for access to their cottage on the island immediately southwest of this property. A copy of the proposal sketch with a satellite image underlay has been attached which shows both subject lands and the island. Also attached is said Proposal Sketch and a blow-up section of the sketch with the satellite image. Enclosed is a copy of PIN 52221-0725 (LT) and a copy of the Registry Office Block Map.

During the course of our survey involvement for the preparation of Plan 42R-21838, it became apparent that the recent extension of Birchgrove Road used by the municipal Fire Department for lake access was located almost entirely on the private lands. This access is also used as a "public access" point during the winter months and is used as a rendezvous for ice fishing outfitters to meet their clients. With the recent upgrades, some members of the public have begun using this access as a summer boat launch. All of the above uses expose my clients to a potential claim of liability should an accident or injury occur on their property.

My clients have cottaged on Lake Nipissing for many decades and generations of the family. They are very environmentally conscious and recognize the need for a safe filling site for the Fire Department's pumper truck. Although there is adequate room on site for a small cabin to be constructed, it is constrained. As stated above, my clients' intention on purchasing this land was to ensure a docking location in close proximity to their cottage.

My clients are proposing a land swap with the Municipality. They are willing to exchange the portion of land on which the access and turn area is located, titled "Transfer to Nipissing" on the attached sketch, in exchange for the Municipality closing and transferring the portion of the original shore road allowance titled "Close & Transfer to Retained" on the attached sketch. My

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Don Goulet, Survey Consultant (705) 493-7974 don.goulet@ggpsltd.com

Reference: File 1278-21

clients would have to retain a right-of-way over the lands to be transferred to the Municipality in order to guarantee access to the public road system. They would also be guaranteed that a Building Permit for the Retained lands could be issued even though they would no longer technically front on a maintained public road.

A review of the Municipality's Official Plan, Schedule B indicates a known fish habitat on the north side of the bay on which we front. Although the shoreline included in our proposal is not designated as such, it is within 120 meters of the sensitive area. As we discussed in our preliminary meeting, should the Council wish to proceed with our proposal, we will retain an environmental consultant to verify that my clients proposed use as a docking site would not have an impact.

My clients are very concerned with the summer use of the access as a public boat launch for motorized boats, fearing its impact on this sensitive area. They have no concerns with the launching of canoes and kayaks, the winter use or its use by the Fire Department. They are requesting that the access not be used as a public boat launching site for motorized boats. In addition to the environmental concerns, this use would also negatively impact the local marinas that rely on the revenues generated by allowing this use of their properties.

The line dividing the "Retained" lands from the proposed "Transfer to Nipissing" has been drawn for the sake of discussion only. We are recommending, should the Council wish to proceed, that I meet with your Operations Superintendent, Dan MacInnis, on site to determine the actual boundary based upon the operational needs of the Fire Department. The attendance of a representative of the Fire Department would also be beneficial.

In my opinion, this proposal has much merit and represents a win-win-win for the Municipality, my clients, the outfitters and the public. I would very much welcome the opportunity to present this to your Council at their July 12th meeting or at the earliest opportunity.

Sincerely,

Paul Goodridge